

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KENT PENWELL,

Petitioner

VS.

REAGAN PENWELL,

Respondent

) Case Number: FDI-25-801720

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: MOTION TO DISCHARGE CONTEMPT MOTION FILED ON
1/2/2026; ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT; ORDER TO SHOW
CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Kent Penwell (Father) and Respondent Reagan Penwell (Mother). They share two minor children: Stella (age 10) and Kent (age 9).
- 2) On for hearing on 4/23/26 are the following three motions:
 - a. Mother's Order to Show Cause and Affidavit for Contempt filed 1/2/26, alleging Father violated the Domestic Violence Temporary Restraining Order (DVTRO). Mother concurrently filed a Memorandum of Points and Authorities, supportive attorney declaration, and Income and Expense Declaration on 1/2/26.
 - b. Mother's Order to Show Cause and Affidavit for Contempt filed 1/23/26, alleging Father violated the Standard Family Law Restraining Orders (ATROS) and the DVTRO.
 - c. Father's Request for Order filed 2/6/26 seeking to discharge Mother's Order to Show Cause and Affidavit for Contempt filed 1/2/26, which alleged Father violated Domestic

Violence Temporary Restraining Orders (DVTROs). Father concurrently filed a Memorandum of Points and Authorities.

- 3) On 3/11/26, Mother filed Respondent's Notice of Errata and Resubmission of the Attached Corrected Order to Show Cause and Affidavit of Contempt with Attachments (Initially Filed on January 23, 2026). Mother concurrently filed an amended supportive attorney declaration on 3/11/26, which is entitled "the Amended Declaration of Kelly Fitzgerald Canby ISO Respondent's Corrected Supplemental Request for Order Seeking Issuance of Order to Show Cause re Contempt."
- 4) On 4/10/26, Mother filed a Responsive Declaration in opposition to Father's Request for Order filed 2/6/26. Mother concurrently filed a Memorandum of Points and Authorities on 4/10/26.
- 5) On 4/16/26, Mother filed a Substitution of Attorney indicating that she is no longer represented by attorney Roger B. Frederickson and is now represented by attorney Charles H. Delacey.
- 6) On 4/16/26, Father filed Petitioner's Objections to and Request to Strike Portions of Respondent's Contempt Motions.
- 7) On 4/16/26, Father filed a Reply Declaration in support of his Request for Order filed 2/6/26 seeking to discharge Mother's Order to Show Cause and Affidavit for Contempt filed 1/2/26.

B. Findings and Order

- 1) As a threshold issue, the Court SUSTAINS Father's objections to and GRANTS Father's request to strike Exhibit 7 of the Amended Declaration of Kelly Fitzgerald Canby ISO Respondent's Corrected Supplemental Request for Order Seeking Issuance of Order to Show Cause re Contempt filed on 3/11/26. The Court will consider Exhibit 7 stricken.
- 2) In proceeding to the merits of the motion to discharge, the Court focuses on the elements required for a finding of contempt which are: (1) a valid court order, (2) knowledge of the order, and (3) willful violation of/ noncompliance with the order.
- 3) Here, through contempt actions filed on 1/2/26 and 1/23/26, Mother alleges Father violated the DVTRO and ATROS by confiscating her vehicle to deny her transportation, sending harassing communications to Mother and the children's nanny and babysitter, inquiring about Mother's whereabouts, surveilling the family residence, and taking actions such as redirecting his income away from a joint account, resulting in severe financial hardship for Mother. Mother states she

1 never provided consent for the funds to be redirected and she believes it was done to interfere
2 with her ability to obtain the necessities of life and to exercise coercive control over her thereby
3 disturbing her peace.

- 4 4) The first two elements of contempt are undisputed (i.e., there was a valid DVTRO of which
5 Father had knowledge and the ATROs apply).
- 6 5) As such, it is Mother's burden to prove beyond *a reasonable doubt* (i.e., more likely than
7 not) that Father willfully violated these orders.
- 8 6) The Court finds Mother did not meet her burden as (a) this Court is not aware of property control
9 orders giving Mother exclusive use and possession of the car at issue, which Father alleges is
10 community property; (b) the DVTRO was extended on 10/29/25 to include an order permitting
11 both parties to contact the children's nanny and there were no orders made regarding
12 communication with a babysitter; (c) the alleged incidence of surveillance (i.e., when Father
13 showed up at the family residence) occurred before the DVTRO was in place; and (d) Father is
14 under no obligation to deposit his post-separation earnings in a joint account.
- 15 7) Based on the foregoing, pursuant to Penal Code section 1385 and in the furtherance of justice, the
16 Court finds good cause to GRANT Father's Request for Order filed 2/6/26 seeking to discharge
17 Mother's Order to Show Cause and Affidavit for Contempt filed 1/2/26 and DISCHARGE
18 Mother's 1/23/26 Order to Show Cause and Affidavit for Contempt on the Courts own motion.
- 19 8) While the Court finds Father's conduct does not rise to the level of contemptible conduct, the
20 Court is concerned that Father's conduct is neither productive nor in the children's best interest.
21 Father is admonished to focus on the children. Neither party shall use the children as messengers
22 between them.
- 23 9) Counsel for Father shall prepare the Findings and Order After Hearing.
- 24 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
25 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
26 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
27 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
28 proposed order after hearing directly to the court. Failure to submit the order after hearing within
29

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).